

HOUSE No. 430

The Commonwealth of Massachusetts

PRESENTED BY:

William F. MacGregor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act modernizing charitable organization fundraising opportunities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 430

By Representative MacGregor of Boston, a petition (accompanied by bill, House, No. 430) of William F. MacGregor relative to modernizing charitable organization fundraising opportunities. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act modernizing charitable organization fundraising opportunities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 10 of chapter 137 of the general laws as so appearing in the 2022 official edition
2 is amended as follows:-

3 in the first sentence of the first paragraph after the word “shares,” by adding:-

4 “ , or digital pull tab tickets”

5 and again in the second sentence of the first paragraph after the words “reselling such
6 tickets” by adding:-

7 “or digital pull tab tickets”

8 and again after the words “said lottery tickets” by adding:-

9 “or digital pull tab tickets”;

and further, in the first sentence of the second paragraph after the words “lottery tickets”
by adding:-

“or authorize the sale of or digital pull tab tickets”;

and further, in the first sentence of the third paragraph after the words “resale value;” by
adding:-

“provided further, 10 per cent of the resale value of digital pull tab tickets shall revert to
the commission”;

and again in the second sentence after the words “sales of lottery tickets” by adding:-

“or digital pull tab tickets”

Section 37. The director may license any organization licensed to conduct the game of
beano, under the provisions of section 38 to sell lottery tickets, or shares, or digital pull tab
tickets; provided, that such tickets are sold only on the premises of said organization for which
such license has been issued; and provided further, that the funds derived therefrom shall be used
exclusively for educational, charitable or religious purposes. The commission shall sell lottery
tickets to such licensed organizations and any such licensed organization reselling such tickets or
digital pull tab tickets shall not be subject to prosecution for setting up and promoting a lottery or
any other crime incidental thereto or for selling or having in its possession said lottery tickets or
digital pull tab tickets.

The commission shall sell lottery tickets or authorize the sale of or digital pull tab tickets
to such licensed organizations and shall determine the price at which said licensed organizations
shall resell said tickets, which price shall be printed on each ticket. Each licensed organization

31 shall be entitled to retain as gross profit not more than 30 per cent of the resale value of tickets
32 sold by it, and shall be solely responsible for paying prizes won by tickets sold by it, which
33 prizes shall be determined by the commission and be not less than 45 per cent of the resale value
34 of said tickets.

35 The commission shall sell lottery tickets to said licensed organizations for 10 per cent of
36 their resale value; provided further, 10 per cent of the resale value of digital pull tab tickets shall
37 revert to the commission, . The revenue derived by the commission from said sales of lottery
38 tickets or digital pull tab tickets shall be apportioned as follows: (1) for the payment of costs;
39 provided, however, that notwithstanding the provisions of section 25, the costs incurred by the
40 commission in the operation and administration of the activities authorized by this section,
41 including the expenses of the commission and the costs resulting from any contract or contracts
42 entered into for promotional, advertising or operational service or for the purchase or lease of
43 lottery equipment, materials and tickets, in no case shall exceed one half of said revenue, subject
44 to appropriation; (2) the balance of said revenue, as determined by the comptroller on June 1 and
45 December 1 of each year, shall be credited to the State Lottery and Gaming Fund to be
46 distributed in accordance with the provisions of section 18C of chapter 58.

47 Organizations licensed under this section shall be considered sales agents for the
48 purposes of this chapter. Activities authorized by this section shall be subject to all provisions of
49 the state lottery law not inconsistent herewith.